

25SMCV00899 25SMCV00899

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CASE NAME: Maroz, v. Irvin

CASE NO.: 25SMCV00899

HEARING DATE: 8/14/2026

MOTION: Motion

to Disqualify Counsel

Legal

Standard

Disqualification is a drastic measure that is only justified where the misconduct will have a continuing effect on judicial proceedings. (Sheller v. Superior Court (2008) 158 Cal.App.4th 1697, 1711.) “[D]isqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (Kennedy v. Eldridge (2011) 201 Cal. App. 4th 1197, 1204; see Khani v. Ford Motor Company (2013) 215 Cal.App.4th 916, 920 [in the successive representation context, “the trial court must balance the current client’s right to the counsel of its choosing against the former client’s right to ensure that its confidential information will not be divulged or used by its former counsel”].) Thus, a disqualification motion may involve such considerations as: (1) a client’s right to chosen counsel, (2) an attorney’s interest in representing a client, (3) the financial burden on a client to replace disqualified counsel, and (4) the possibility that tactical abuse underlies the disqualification motion. (In re Complex Asbestos Litigation, (1991) 232 Cal.App.3d 572, 586.)

To bring a motion to disqualify counsel, the moving party must demonstrate a “an invasion of a legally cognizable interest” that is “(a) concrete and particularized, and (b) actual or imminent, not conjectural or hypothetical.” (Great Lakes, *supra*, 186 Cal.App.4th at 1356, 1358.) “A motion to disqualify will not be granted when only a hypothetical conflict exists.” (Fox Searchlight Pictures, Inc. v. Paladino (2001) 89 Cal.App.4th 294, 302.) Conflicts of interest generally include concurrent or successive representation of clients with adverse interests, receipt of confidential information outside the attorney-client relationship, the lawyer’s relationships with nonclients, conflicts based on the lawyer’s own interests, business dealings with clients and conflicts in criminal cases. (Lynn v. George, (2017) 15 Cal.App.5th 630, 638.) A legally cognizable interest for disqualifying an opposing attorney may arise from generalized policy concerns surrounding the rule of professional conduct, e.g., the integrity of the process. (See A.F. v. Jeffrey F. (2022) 79 Cal.App.5th 737, 746 [reversed trial court ruling disqualifying counsel, where mother and child were represented by an attorney that successively represented mother in prior dissolution of marriage proceeding].)

The State Bar Rules of Professional Conduct govern attorney discipline, not standards for attorney disqualification in courts. However, courts may look to the Rules of Professional Conduct for guidance regarding attorney disqualification. (Great Lakes Const., Inc. v. Burma (2010) 186 Cal.App.4th 1347.)

ANALYSIS

Defendant

Helene Irvin moves to disqualify J. Scott Russo and the law firm of Russo & Duckworth, LLP, from representing Plaintiff Jeff Maroz in this action.

In seeking disqualification, Defendant primarily relies on the advocate-witness rule. “A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1) the lawyer’s testimony relates to an uncontested issue or matter; (2) the lawyer’s testimony relates to the nature and value of legal services rendered in the case; or (3) the lawyer has obtained informed written consent from the client.” (CPRC 3.7(a).) One purpose of the advocate-witness rule is to prevent factfinder confusion regarding whether an advocate-witness’s statement is to be

considered proof or argument. (People v. Donaldson (2001) 93 Cal.App.4th 916, 928-29.) "[T]he jury may have difficulty keeping properly segregated the arguments of the attorney acting as advocate and his testimony as a witness." (People ex rel. Younger v. Super. Ct., (1978) 86 Cal.App.3d 180, 196.) Where a lawyer representing a party is also a witness during the trial, his or her effectiveness, both as a lawyer and as a witness, may be impaired in the eyes of the fact finder. (Id.) The trial court must deny the disqualification motion under the advocate-witness rule, where (1) counsel's testimony is not needed, (2) opposing counsel files the motion for purely tactical reasons, and (3) when the balance tips in favor of the party because the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case. (Doe v. Yim (2020) 55 Cal. App. 5th 573, 583.)

Here, Defendant fails to demonstrate that counsel's testimony will be necessary. Defendant claims that counsel is a witness to the underlying cases at issue. Defendant also explains the background of the prior cases. (Irvin Decl., ¶¶ 3-37.) The Complaint arises from the insurance Policy which was subject to the underlying dissolution action and judgment. (Compl., ¶¶ 13-21.) However, Defendant does not show that counsel's testimony will be unique, i.e., that other people involved in the procurement of the Policy and the underlying cases concerning the Policy would not be able to provide overlapping testimony. The facts of the Complaint and Defendant's declaration show that other people, aside from Plaintiff's counsel, will be able to establish any facts concerning the Policy and the underlying cases, such as Plaintiff or Defendant. Counsel's testimony will therefore be unnecessary. Plaintiff's interest in his chosen counsel, who is familiar with the underlying facts, as well as counsel's interest in representing Plaintiff, outweighs the insubstantial risk that counsel will be a witness in this action.

Defendant also argues that this action arises from life-insurance rights previously adjudicated pursuant to a dissolution judgment in the underlying action. Defendants assert that post-judgment beneficiaries or ownership changes inconsistent with said judgment would be improper, citing Randle v. Farmers New World Life Insurance Company (2022) 85 Cal.App.5th 53. However, Defendant does not explain why these principals would support disqualification of counsel. Randle

does not involve any disqualification issues.

Accordingly, the motion is DENIED.